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Counterfactual Granite Heron Response Brief

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed April 8, 2026

The isolated premise removes the procedural obstacle that controlled the actual preservation question. Granite Heron is assumed to have moved expressly on mitigation when Blue Ember rested and again after all evidence, identifying Cobalt Finch, its December capacity, the claimed \$1,800,000 avoidance, the \$300,000 alternative expense, and the requested \$1,500,000 net deduction.

On that assumed record, the district court correctly entered renewed judgment. Cobalt Finch offered a real, suitable suite; no fatal incompatibility was identified; the compressed transfer plan was supported by concrete milestones; and Blue Ember declined before completing the focused inquiry needed to make a reasoned choice. No reasonable jury could limit the proven reduction to \$300,000.

The Court should affirm the mitigation JMOL and affirm the \$2,700,000 amended judgment. It need not decide the conditional Rule 59 ruling or the proposed damages-only scope because that ruling remains dormant while renewed judgment controls. Granite Heron requests no additional disposition component and no alteration of liability or causation.

Corporate disclosure and branch isolation

Granite Heron Logistics, Inc. is a privately held fictional corporation. No publicly traded corporation owns ten percent or more of its stock, and it has no parent corporation requiring disclosure. Eli Mercer and Tara Webb appear for Granite Heron; Maya Holt and Jonas Bell represent Blue Ember in this never-filed exercise.

Cobalt Finch Bioprocessing is a nonparty contract manufacturer. Its capacity evidence matters only to the mitigation defense. Aurora Quay Manufacturing Center is the later replacement site, while Solstice Gate Analytics performed bounded testing. None of those invented organizations possesses a financial interest in the outcome beyond the relationships described in the record.

This brief accepts the February 2 variation without asserting that its assumed statements occurred. The two actual Rule 50(a) motions remain causation-only district sources. The variation supplies a different premise for a segregated appellate analysis, and every filing, order, judgment, or mandate arising from it belongs solely to the docket shown above.

There is no related real appeal. Granite Heron asks the panel to decide the branch on its own documentary evidence and to keep any reasoning from migrating into historical descriptions of the lower proceedings. Isolation is a condition of the exercise, not an evidentiary concession about the merits.

Jurisdiction and questions answered

The district court possessed diversity jurisdiction over the contract action. Its December 15, 2025 order granted the timely renewed motion, ruled conditionally on the alternative new-trial request, and entered an amended monetary judgment resolving the remaining controversy. That final decision is reviewable under 28 U.S.C. § 1291.

Blue Ember's January 12, 2026 notice was timely because Granite Heron's November 10 posttrial motion suspended the civil appeal clock until December 15. The counterfactual variation changes neither date. This response is timely under the February 2 schedule, which set April 8 after the March 9 opening submission.

The first question is whether the evidence compelled at least a \$1,500,000 mitigation deduction once preservation is assumed. Granite Heron answers yes. The second is whether the amended \$2,700,000 judgment should remain operative. Granite Heron again answers yes because it subtracts the compelled deduction from the undisputed \$4,200,000 gross figure.

The conditional new-trial ruling presents no necessary third decision. Rule 50(c) required the district court to state what would happen if JMOL ceased to control, but affirmance leaves that condition unsatisfied. The Court should therefore avoid approving, rejecting, or modifying either the Rule 59 rationale or the limited financial scope.

The assumed motions gave exact notice

At the close of Blue Ember’s evidence, the assumed motion identified the mitigation element, the October 2 Cobalt Finch proposal, the reserved December 2 start, the \$1,800,000 delay-avoidance calculation, the \$300,000 incremental expense, and the resulting request for a \$1,500,000 net reduction. It sought judgment on that defined ground.

The assumed renewal after all evidence repeated the same theory and relief. Blue Ember was given an opportunity to answer, point to contrary proof, request clarification, or seek a limited reopening before the verdict. It relied on Solis, Calder, Brooks, and the qualification records rather than claiming surprise.

Those facts satisfy the continuity requirement of Rules 50(a)(2) and 50(b). *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), makes a distinct basis first raised under Rule 50(b) unavailable even while the general sufficiency issue actually raised under Rule 50(a) remains reviewable. Here, by explicit hypothesis, the distinct mitigation ground and requested judgment were presented twice before verdict.

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), addresses variation between an issue preserved in Rule 50(b) and the appellate theory supporting it. Granite Heron does not use that later-stage rule to invent pre-verdict preservation; the branch order supplies exact preservation independently.

Granite Heron does not ask this Court to infer preservation from a general objection or to dilute *Unitherm Food Systems, Inc. v. Swift-Eckrich, Inc.* The branch removes that dispute entirely. The panel may reach sufficiency while leaving the causation-only wording of the actual motions untouched.

Blue Ember received a genuine cure opportunity

The preservation variation does more than insert a label. It assumes that the district judge invited Blue Ember to identify any missing testimony or exhibit needed to meet the mitigation motion. Counsel could have asked to recall a witness, supplement an explanation, or clarify the economic inputs before submission to the jury.

Blue Ember instead relied on the complete record already assembled. Solis explained the sponsor's decision; Calder described facility capability and open work; Brooks criticized Park's certainty; the emails supplied the capacity hold and schedule; and the qualification file identified the remaining gates. Nothing material was withheld because of timing.

That assumed process fulfills Rule 50(a)'s notice function. The rule gives the nonmovant a chance to cure an evidentiary omission before the case goes to the jury; it does not guarantee that existing proof will satisfy the legal standard. Blue Ember's chosen response was substantive and fully heard.

Because notice and cure are fixed, this appeal cannot turn on whether different trial tactics might have produced a different record. The question is whether the evidence actually identified in the motions permitted a reasonable \$300,000 finding. Granite Heron submits that the undisputed concrete facts foreclose so small a deduction.

The Durham offer was operationally real

Cobalt Finch's October 2 proposal reserved an identified Durham suite until October 4 at 17:00 Eastern Daylight Time. The site had development-biologics experience, appropriate scale, frozen receiving, compatible single-use systems, trained personnel, and access to the analytical support needed for an accelerated BE-214 campaign.

The proposal did not merely invite negotiations. It set an October 7 kickoff, an October 14–15 focused assessment, transfer work through early November, an engineering exercise during November 11–15, a November 22 readiness gate, and a December 2 manufacturing start. Campaign completion was projected near December 20.

Dr. Calder confirmed that the sequence was feasible. No witness identified a fatal equipment conflict, a missing regulatory permission, an unavailable critical material, or a scientific barrier that would prevent transfer. Another sponsor ultimately booked the released slot, confirming that the capacity was not hypothetical inventory.

Blue Ember emphasizes that success was not guaranteed. Mitigation law does not demand a guarantee before a reasonable alternative becomes obligatory. The evidence must be assessed at the time of choice, and the concrete availability, technical fit, schedule, and potential savings made further pursuit necessary rather than optional.

Qualification work did not make the alternative illusory

Cobalt Finch had not previously manufactured BE-214, so a program-specific comparison, method allocation, document adaptation, training, and engineering confirmation remained. Those tasks were part of the offered accelerated plan. Their existence does not establish that the plan was unsuitable; it explains how a capable facility would become ready.

The qualification file characterized execution risk as elevated but manageable. It identified decision gates and staged expenditure so that Blue Ember could stop if a material incompatibility emerged. That structure reduced exposure while preserving the only known route to a substantially earlier campaign.

Blue Ember released the hold before the focused assessment began. It therefore never learned whether the open items could be resolved on the proposed schedule. A party cannot convert uncertainty created by declining available diligence into proof that no reasonable mitigation step existed.

The jury could recognize some opportunity, but its \$300,000 net answer did not rationally account for the uncontested scale of acceleration. Once the proposal's feasibility, schedule, and limited incremental cost are placed alongside the \$2,000,000 bounded delay component, the minimum supported reduction is Park's \$1,500,000 figure.

The schedule supported substantial avoidance

Aurora Quay's replacement campaign began March 3, 2025. Cobalt Finch proposed to begin manufacturing on December 2, 2024, roughly three months earlier, with initial campaign work finishing near December 20. Testing, review, and disposition would follow, but those downstream steps also would commence months ahead of the later path.

Park mapped the difference against the bounded delay model. She did not assume that every day between start dates converted automatically into damages. Her analysis left \$200,000 of the \$2,000,000 delay component unaffected and attributed \$1,800,000 to time a successful accelerated course would avoid.

The contemporaneous schedule supported that allocation. Tasks overlapped deliberately, critical inputs had identified owners, and the readiness gate preceded the reserved start. No competing calculation tied the jury's much smaller net answer to a particular missed milestone, probability, or residual-delay amount.

Brooks described uncertainty but did not supply a supported alternative number. Rule 50 permits a jury to resolve disputed inferences; it does not permit an award assembled without a rational bridge from evidence to amount. The undisputed calendar and bounded model establish a floor that the \$300,000 finding failed to respect.

The economic calculation was bounded and transparent

Granite Heron did not challenge the jury's \$4,200,000 gross total for purposes of its renewed motion. That figure consists of \$1,350,000 associated with the rejected validation lot, \$850,000 in replacement and related incremental work, and \$2,000,000 in bounded delay. Mitigation applies after those components are combined.

Park attributed \$1,800,000 of delay to time avoidable through Cobalt Finch. She then deducted the entire \$300,000 projected alternative expense rather than ignoring the cost of reasonable mitigation. The resulting \$1,500,000 is a net defense amount, not a second recovery or an attack on original-lot value.

Subtracting \$1,500,000 from \$4,200,000 yields \$2,700,000. By contrast, the jury subtracted only \$300,000 and produced the October 15 judgment of \$3,900,000. Every figure is traceable, and the amended judgment changes no nonmonetary finding.

Blue Ember speculates about additional risk-adjusted expense, but the record supplied no quantified amount beyond the \$300,000 working estimate. A verdict cannot manufacture more alternative cost without evidence. Park's use of the complete disclosed estimate was favorable to Blue Ember and established the minimum net reduction supported by the record.

The jury's intermediate number lacked a record bridge

An intermediate verdict is not automatically reasonable merely because it falls between competing endpoints. The record must permit a rational calculation or inference connecting the evidence to that number. Here, no witness explained how a \$300,000 net deduction followed from the capacity, schedule, cost, and bounded delay proof.

Jurors could assess uncertainty, but they could not disregard uncontested facts. Cobalt Finch had the suite, the proposed systems were relevant, no fatal conflict appeared, the transfer calendar was concrete, and the later qualified campaign began months afterward. Those facts established much more than a marginal opportunity.

Brooks offered criticism rather than a competing model. He assigned no success probability, alternative completion date, increased transfer expense, or different residual loss. Solis described the decision as prudent from the sponsor's perspective, yet subjective caution does not quantify the loss a reasonable response would have prevented.

The district court did not choose Park over an equally supported number. It concluded that the evidence, viewed favorably to Blue Ember, could not sustain a reduction below \$1,500,000. That conclusion respects the jury's role while enforcing the requirement that monetary findings rest on a legally sufficient evidentiary foundation.

Rule 50 review preserves burdens without reweighing

Renewed judgment is reviewed de novo, with reasonable inferences drawn for Blue Ember. The court may not make credibility choices or prefer one supported factual account merely because it appears stronger. Granite Heron accepts that demanding standard and relies on matters that were uncontradicted or insufficiently answered.

North Carolina treats mitigation as an affirmative defense. Under *Thermal Design, Inc. v. M&M Builders, Inc.* and *Clark v. Bichsel*, Granite Heron bears unreasonable failure and the amount avoidable. The district court held that the concrete offer and financial evidence met that burden as a matter of law at the \$1,500,000 level.

The holding does not shift a burden to Blue Ember simply because it could not prove certain failure. Blue Ember presented all of its evidence. The defect is that its evidence established open tasks and ordinary execution risk without furnishing a reasonable basis to shrink the demonstrated net benefit to one fifth of Park's calculation.

Nor did the court resolve Calder's credibility against Blue Ember. Calder acknowledged incomplete qualification while confirming relevant capability, feasibility, and absence of a known disabling mismatch. Giving Blue Ember every favorable inference from those concessions still leaves the accelerated route and minimum economic consequence intact.

Blue Ember's uncertainty arguments do not defeat the floor

Blue Ember emphasizes that initial manufacturing did not equal final disposition. Park's model accounted for downstream work by leaving part of the bounded delay in place. The \$1,800,000 avoidance figure was not the maximum imaginable benefit; it was a measured allocation within a \$2,000,000 delay category.

Blue Ember also points to staged cancellation exposure. The \$300,000 estimate covered the identified accelerated effort, and Park deducted it in full. No exhibit established a larger expected cost. A factfinder could not increase the expense component solely because the proposal allowed revision if a major unknown appeared.

Finally, Blue Ember invokes hindsight. The district court relied on the October materials, not later success. At the decision point, the suite was held, the schedule was specific, relevant systems existed, and no fatal incompatibility was known. The later booking merely corroborated that scarce capacity was genuine.

These answers do not require certainty. They show that the remaining uncertainties were too general to support reducing an evidenced \$1,500,000 net benefit to \$300,000. The law tolerates reasonable estimates; it does not allow an unexplained figure to survive solely because scientific transfer always carries some risk.

The conditional ruling remains legally present but dormant

Rule 50(c)(1) required Judge Carver to rule conditionally on Granite Heron's alternative Rule 59 motion when she granted renewed judgment. She did so, identifying gross damages and mitigation as the proposed retrial subjects if the JMOL later ceased to control. Liability and causation were excluded.

That conditional order is part of the procedural record, but it has no present operative effect while the amended judgment rests on affirmed JMOL. Rule 50(c)(2) addresses consequences if renewed judgment is reversed or vacated. Affirmance does not trigger the condition.

Granite Heron therefore does not ask this panel to hold that the verdict was against the clear weight, to approve the damages-only limitation, or to resolve the separability principles discussed in *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.* and *Rice v. Community Health Association*.

Avoiding those issues is not an implicit rejection. It follows ordinary judicial restraint and the explicit two-component branch disposition. The conditional ruling remains in the record for the contingency it states, but the opinion and judgment should neither affirm nor reverse it.

The amended judgment accurately implements the deduction

The December 15 amended judgment begins from the \$4,200,000 gross damages found by the jury. It substitutes the legally compelled \$1,500,000 mitigation deduction for the jury's \$300,000 deduction and enters \$2,700,000 for Blue Ember. The calculation is direct and contains no hidden offset.

Granite Heron does not seek to reduce the award below \$2,700,000. The original-lot and replacement categories remain intact, as does the gross delay figure before mitigation. The amendment changes only the affirmative-defense number and its arithmetic consequence.

The judgment likewise leaves contract liability and proximate causation untouched. Although the actual Rule 50(a) motions concerned causation, the isolated premise permits review of mitigation without reviving any causation request. This branch therefore presents a narrow monetary affirmance rather than a wholesale reconsideration of trial findings.

An appellate mandate following affirmance should identify the district court's amended judgment as controlling and should not direct further proceedings on the conditional new-trial order. Payment and ordinary enforcement consequences follow the operative judgment under applicable rules, subject to any timely mandate-stay route separately invoked.

The proper disposition has exactly two components

First, the Court should affirm the district court's grant of judgment as a matter of law on mitigation. That component resolves the legal sufficiency of the Cobalt Finch defense under the branch's express-preservation assumption and leaves all other liability findings alone.

Second, the Court should affirm the December 15, 2025 amended judgment awarding Blue Ember \$2,700,000. That component preserves the gross \$4,200,000 total and implements the \$1,500,000 net deduction that the record compels.

No remand is required. The Court should not add a third component addressing the conditional Rule 59 ruling, its clear-weight rationale, or its proposed limitation to gross damages and mitigation. Those matters are unnecessary because renewed judgment remains controlling after affirmance.

This confined disposition also protects branch isolation. The opinion and judgment will operate only on the never-filed docket. They cannot amend the actual district motions, establish historical preservation, or affect any separate appellate path. Every later rehearing or mandate event must retain the same counterfactual designation.

Conclusion and service certification

The assumed motions precisely preserved mitigation and gave Blue Ember a complete opportunity to cure. On the full evidence, a reasonable factfinder could recognize qualification tasks and ordinary transfer risk, but could not rationally reduce the concrete net benefit below \$1,500,000 without a supported alternative probability, schedule, or expense.

Granite Heron requests affirmance of the mitigation JMOL and affirmance of the \$2,700,000 amended judgment. It requests no ruling on the conditional Rule 59 order or the possible scope of a financial retrial, no change to liability or causation, and no remand. That limited relief exactly tracks the only merits and judgment targets necessary to resolve the preserved branch.

Eli Mercer signs for Granite Heron with Tara Webb's authorization. Counsel certifies electronic service on Maya Holt and Jonas Bell on April 8, 2026. The served file bears the isolated docket, both synthetic warnings, and no representation that a filing occurred in any actual proceeding.

All people, entities, facilities, identifiers, monetary amounts, and procedural events described here belong to a fictional training record. Use of fixed district evidence permits legal comparison; it does not convert the express-preservation premise or any resulting appellate event into historical fact.